

Crl.Misc.No.4264-B/2013

Bilal Ahmad @ Bilali

The State, etc.

31.05.2013 Ch. Muhammad Safdar Bhatti, Advocate for the petitioner.
Mr. Muhammad Nawaz Shahid, DDPP for the State.
Ch. Sajid Ali Bul, Advocate for the complainant.
Muhammad Ashraf, S.I. with record.

Bilal Ahmad @ Bilali, the accused-petitioner seeks post arrest bail in case FIR No.555 of 2011, dated 05.12.2011 registered under Sections 302, 324, 148/149 & 335 PPC at P.S. Narang District Sheikhpura.

2. The allegation against the petitioner is that on 05.12.2011 at about 9.15 p.m. he along with his co-accused while armed with firearms formed unlawful assembly and in furtherance of their common object attacked on the complainant party as a result of which Shahid Mehmood succumbed to the injuries suffered by him and Rab Nawaz was seriously injured.

3. Learned counsel for the petitioner has contended that the petitioner is not nominated accused in the FIR; that the occurrence allegedly was taken place on 05.12.2011 and complainant got his supplementary statement recorded on 07.12.2011 after the expiry of two days, wherein the name of petitioner is introduced

as accused without any specific role; that neither the petitioner committed the murder of Shahid nor he injured Rabnawaz; that on the statements of Karamat and Abdul Ghafar PWs, the petitioner is involved in this case on the ground that he was recognized in the light of motorcycle, which is weak type of evidence; that identification parade has no value if it is made after recording of supplementary statement as dictum delivered in 2013 P.Cr.L.J. 226; that extra judicial confession regarding the involvement of present petitioner in this case before the police is also weak type of evidence; that no fatal fire-shot and specific role has been assigned to him ; that during the physical remand, nothing has been recovered from the present petitioner; that the case of the present petitioner is of further inquiry, therefore, the petitioner is entitled to the concession of bail.

4. This bail petition has been opposed by learned DDPP assisted by learned counsel for the complainant by contending that on 07.12.2011 petitioner is nominated in the supplementary statement on the basis of two PWs Karamat Ali and Abdul Ghaffar, who at the time of occurrence had identified the petitioner in the light of Motorcycle; that the petitioner had participated in the occurrence in furtherance of common object of the co-accused and committed murder of Shahid Mehmood deceased and also injured Rabnawaz; that heinous offence has been committed by the accused-persons; that sufficient material is available on record against the petitioner to connect him with the commission of offence and there is no malafide on the part of the complainant to falsely involve the petitioner in this case, therefore, the petitioner is not entitled to the concession of bail.

5. I have heard the learned counsel for the parties and perused the record.

6. Admittedly petitioner-accused was not named in the FIR and the complainant, however, after two days through his supplementary statement had nominated present petitioner as accused and stated that PWs namely Karamat Ali and Abdul Ghafar informed him that they saw in the light of the motorcycle that the present petitioner-accused along with co-accused Muhammad Shafique was going on the motorcycle towards the Dera of Mukram Shah, investigating officer arrested the petitioner on 14-12-2011 and identification of the petitioner-accused took place on 24-12-2012. The contention of the learned counsel for the complainant that the complainant and PWs identified the petitioner in identification parade, has no force as Identification parade lost its efficacy in the presence of the supplementary statement as said identification parade was conducted after the nomination of the accused in the case. No specific injury was attributed to the petitioner-accused in the F.I.R and he was only attributed general role of firing. Question as to whether petitioner was present at spot and whether he made fires, were to be dealt with by the learned trial Court, evidentiary value of recovery of Motorcycle and Kalashnikov could be determined by learned trial Court after recording of evidence. Mere involvement of accused in other case did not debar him from bail, if he is otherwise entitled for the same. The findings of the investigating officer had entirely changed prosecution case given in the F.I.R, as during the investigation he found six accused including the co-accused to whom specifically fatal injuries has been attributed being innocent

and the complainant being dissatisfied with the investigation filed private complaint by assigning the same role attributed in FIR to accused persons. It was yet to be determined by learned trial Court as to which of the attributions, are in the F.I.R, the other in the supplementary statement and private complaint or findings of the investigating officer was correct or believable against the petitioner-accused. Such fact alone was sufficient to bring the case of petitioner-accused within the scope of further inquiry as envisaged under S.497(2) Cr. P.C. and if case of the petitioner-accused fell within the ambit of further inquiry, commencement of trial was also no ground to refuse the bail to petitioner-accused.

Resultantly, this petition is **accepted** and the petitioner is **admitted** to bail subject to his furnishing bail bonds in the sum of Rs.3,00,000/- with two sureties each in the like amount to the satisfaction of the trial court. However, the learned trial court is directed to conclude the trial expeditiously preferably in accordance with the Revised National Judicial Policy.

(Aalia Neelum))
Judge

Approved for Reporting

Judge

***R.Yousaf**